Constitution for Cairns Engineering Society

1. Interpretation

"Association" means the James Cook University Student Association. "Association Council" means the James Cook University Student Association Council.

2. Name

The name of the Club shall be Cairns Engineering Society. Hereinafter called the Club.

3. Objectives

The objectives of the Club shall be:

i. To build a social community for engineering students studying at JCU Cairns campus.
ii. To encourage the practice of engineering disciplines offered on JCU Cairns campus.
iii. To build industry links which will support the career development of Club members.

4. Membership

Any person who falls into one of the categories specified below will be eligible for membership of the Club if the person is not currently subject to a membership revocation from the society.

Description of membership categories:

i. Undergraduate – must be currently enrolled in a committee-approved undergraduate course at JCU Cairns campus. The engineering course is default approved.
~~ii.~~ Alumni – Must be a graduate from a JCU Cairns campus engineering course.
iii. Associate – must either: receive an invitation from the committee to join; or, be accepted as an associate member by the committee following a request to join.

"Committee-approved" refers to general acceptance from executive and committee members. No formality required.

An annual membership fee may be set at the discretion of the executive as an additional requirement for membership of the Club. The membership fee must be a minimum of $5 annual entry to receive JCUSA grant. The membership year shall run from the beginning of SP1 that year to the beginning of SP1 the following year.

5. Management

5.1 Management of the Club shall be vested in an Executive and Committee. The former of which shall be elected annually by the membership at the Annual General Meeting.

5.2 The Executive shall be compromised of:-

i. The President who shall be the spokesperson for the Club and shall represent the Club whenever necessary, lead reaffiliation efforts, and manage event organisation along with the Vice-President and Secretary & Industry Liaison.
ii. The Vice-President who shall depute for the President in his/her absence and aid with event organisation.
iii. The Secretary & Industry Liaison, who shall keep accurate minutes of all meetings of the Club and the Management, maintain a register of members of the Club, attend to Club correspondence and keep such other records as are required by the Club or by Association Council from time to time. The Secretary & Industry Liaison shall also be

a first point of contact for partnerships and communication between the club and industry.

iv. The Treasurer who shall keep a record of all monies received, and payments made by the Club such as will permit an unqualified audit of the Club's accounts for presentation to the Annual General Meeting and shall present regular financial statements and accounts to the Committee. All monies received by the Club shall be paid in full into a Club account set up for the purpose, and disbursements shall be paid by internet transfer from the Club's account, except those amounts which may be made by the Treasurer in the case of petty cash disbursements. The Treasurer shall set up an imprest account for petty cash disbursement with an upper limit to be determined from time to time by the Executive.

v. Such other members with such other responsibilities as the Club may from time to time appoint at a general meeting.

5.3 The Committee shall consist of the Executive in addition to other non-executive members. Non-executive Club members can opt-in to join the Committee and will be appointed the by the discretion of the Executive. The additional members may be asked to help in keeping the efficient running of the Club. The committee will often meet to discuss the operational matters of the Club.

5.4 Eligibility to be elected to the Executive is defined as a member of the Club who has completed at least 2 subjects of the engineering first year program at JCU and will have been enrolled at JCU for more than 12 months when taking on the executive duties.

Eligibility to be elected is also defined as a member of the club who is NOT going to be in their final year of study while in the position.

5.5 Eligibility to be on the Committee is defined as a member of the Club.

5.6 The Executive shall be elected at the Annual General Meeting by receiving the majority vote of quorum.

5.7 New Executive positions may be created by receiving votes two-thirds of quorum at a General Meeting.

5.8 In the event of a casual vacancy in the Executive, a replacement must be elected at a special general meeting. An interim replacement, who must meet eligibility for election as per clause 5.4, may be appointed by the remaining members of the Executive at their discretion.

6. Finance

6.1 The Club shall open a Bank, Building Society or Credit Union account, to be operated upon by the signatures of any three (3) members of the Club's executive, hereafter called the Account. The signatories must include the president and treasurer.

6.2 The Committee shall prepare an annual budget for the proper ordering of the financial affairs of the Club and for presentation to the Clubs and Societies Committee or in support of each annual application for an Association grant.

6.3 The Committee shall ensure that the Association regulations in respect of the Club and Society finances and reporting are satisfied.

6.4 The financial year of the Club shall end 31 December each year.

6.5 Two authorised signatories of the Account must approve payments on behalf of the Club. This can be in the form of signatures on a cheque or electronic approval.

6.6 The following actions relating to transaction management must be adhered to:

i. Monies received by the Club shall be paid in full into the Clubs Account.
ii. Disbursements totalling more than $100 must be paid in the form of internet transfer from the Account.
iii. Lesser disbursements may be paid in the form of petty cash. The Executive has the authority to establish a petty cash system for payments, so that purchases can be made on behalf of the club.
iv. Purchases made using petty cash of the club may be made by any person acting on the authority of the Executive; however, it will be the responsibility of the treasurer to maintain accurate records relating to such purchases as to uphold the accountability of the petty cash system.

7. Meetings

7.1 Annual General Meeting

The Annual General Meeting shall be held towards the end of the final teaching period of the year, with nominations and discussion for executive positions to be brought up in ~~the previous year~~ this AGM. The outgoing Executive shall notify membership and first years as soon as possible of the upcoming A.G.M.

At the Annual General Meeting the Executive shall deliver a recount of the year and introduce the club and what it has to offer to new and existing members.

Quorum at the Annual General Meeting shall be ¾ of the executive and five ordinary members. In the event of quorum not being present within thirty (30) minutes of the scheduled time for the meeting, the meeting shall be adjourned to the same place and time in the following week at which those members present shall constitute a quorum.

7.2 Special General Meetings

Special General Meetings may be called by the Committee or by petition to the Secretary & Industry Liaison or President, from a number of ordinary members equivalent to twice the numbers of Executive members.

Special General Meetings shall be called within fourteen days of receipt by the Secretary & Industry Liaison or President of a request from the Committee or the membership as above. Seven (7) days' notice shall be given to the membership of a Special General Meeting.

Quorum at a Special General Meeting shall be two thirds majority of attendees.

7.3 Committee Communication and Meetings

The Management Committee shall organise a communication platform for club related topics and a means to share important resources. Committee meetings may be held at the discretion of the committee, with the Secretary & Industry Liaison responsible for minutes keeping where appropriate.

8. Property

All property of the Club shall be held in trust for Club purposes. Decisions relating to the use, storage and purchase of property held in trust for the club will be vested in the Executive. In the event of dissolution of the Club the property of the Club shall devolve upon the James Cook University Student Association.

9. Powers of the Management

9.1 The Management shall be empowered to do all things conducive and incidental to the attainment of the objects of the Club consistent with this Constitution and the James Cook University Student Association Regulations made there under.

9.2 The Management shall have the power to make regulations and by-laws, in accordance with this Constitution.

9.3 The Executive has the power to revoke a membership, providing the vote is passed by at least 3 executives.

9.4 The Executive shall have the power to make operational decisions without committee approval if the decision is unanimous.

10. Liability

10.1 Each member ("That Member") of the Club shall:

i. **Responsibility to Others**: Each member is responsible for their own actions and must cover any costs or claims if they cause harm or loss to someone else, including other members, during Club activities.
ii. **Responsibility for Themselves**: Members agree that they cannot hold the Club, its officers, or other members responsible for any harm or loss they personally experience during Club activities, even if it's due to someone else's mistake or negligence.

10.2 “Club Activities” include activities engaged in predominantly for the advancement of Club Objectives enumerated on Clause 2, including activities on the nature of or incidental to:

- Meetings
- Functions/Events
- Workshops/Seminars
- Training sessions; and
- Competitions

11. General

In any matters not specified in this Constitution or in Regulations enacted by the Committee under this Constitution the provisions of the Constitution and Regulations of James Cook University Association shall apply.

12. Disputes

Any disputes must be submitted in writing to the Secretary & Industry Liaison and presented to the Executive within three (3) days of receipt of the dispute. The Executive must then meet within fourteen (14) days to discuss and resolve the dispute.

Alternatively, the dispute can be brought to a general or special general meeting, and the disputed issue be decided by a 2/3 majority vote of members present at that meeting.

Executive committee decisions can be overturned by a 2/3 majority vote of members present at a general or special meeting.

13. Appeals

Any appeals must be submitted in writing to the Secretary & Industry Liaison and presented to the Executive within three (3) days of receipt of the appeal. The Executive Committee must respond to the appeal within fourteen (14) days.

14. Amendments to Constitution

The Constitution may be amended at a general meeting of the Club by two-thirds majority vote of members present.

15. Dissolution

The Club shall be dissolved should it fail to hold its Annual General Meeting, or on the decision so to do of a two-thirds majority of members present and voting at a general meeting for which due notice has been given.